Mothers' Abuse Reports Under Uncertainty: Why Custody Courts' Default Response Fails the Child

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Transparency and openness: This is a theoretical article; no data were collected. The code for the sensitivity analysis is provided as supplemental material and is publicly available at https://github.com/verawilde/custody-decisions-under-uncertainty. The work was not preregistered.

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Abstract

When mothers report that a father is abusing them or their children, family courts in many countries respond with suspicion of the mother: the report is recast as evidence that she is alienating the child, and custody sometimes moves to the accused father. Two literatures bear on this response. One shows that unsubstantiated reports are routinely treated as false, although intentional fabrication is uncommon and, in custody disputes, comes more often from noncustodial parents than from custodial mothers. The other shows that credibility judgments based on demeanor perform near chance and follow observers′ expectations of how a victim should appear, so that a distressed mother and a composed mother can each be disbelieved. We argue that the alienation inference, as commonly applied, is confirmatory hypothesis testing: the report itself, the mother′s worry and her compliance are all counted in its favor, so nothing can count against it. We then model the court′s choice as a decision under uncertainty, with several risk pathways and at least three actions. Provided that supervision reduces the child's exposure to risks running through the accused parent and that separation from the primary caregiver does more harm than the burden of supervision, keeping the child with the primary caregiver under supervised contact dominates transfer to the accused parent for any probability of abuse; transfer can be preferred only on independent evidence that the mother herself endangers the child, at a threshold that rises with the risk posed by the father. We explain why these errors persist unmeasured, review legal reforms in Spain, Italy, England and Wales, and Germany, and propose procedural safeguards and outcome tracking.

Keywords: child custody evaluation, parental alienation, credibility assessment, decision under uncertainty, gender bias

Mothers′ Abuse Reports Under Uncertainty

Transparency and Openness

This is a theoretical article; no data were collected and the work was not preregistered. Code reproducing the sensitivity analysis (Tables 2 and 3) is provided as supplemental material.

The Pattern

A mother tells a family court that the father of her child has hurt her, the child, or both. The father answers that she is turning the child against him. In a share of these cases, the court′s response is not to investigate the report but to treat it as a symptom: the more serious the allegation and the more insistently it is pressed, the more it is read as evidence of a mother who will not let the father have a relationship with his child. The remedy that follows can be a reduction of the mother′s time with the child, an order for unsupervised contact, or a transfer of the child′s residence to the father.

This pattern has been documented across jurisdictions. In a study of published U.S. custody opinions, mothers′ claims of abuse, especially of child physical or sexual abuse, were associated with a higher risk of losing custody, and fathers′ cross-claims of alienation roughly doubled that risk (Meier et al., 2020). If fabricated reports are uncommon, a mother's abuse report should, on balance, raise the probability that a child needs protection, so this pattern runs opposite to what correct updating on those base rates would predict. Published opinions are a selected sample, and the association alone cannot show how many individual decisions were wrong, but its direction is consistent with the inferential error analyzed below.

An expert panel commissioned by the Ministry of Justice for England and Wales identified a pro-contact culture, resource constraints, the adversarial process and silo working as structural barriers that minimized domestic abuse, with the result that court orders often failed to protect children and adult victims (Hunter et al., 2020). A later pilot by the Domestic Abuse Commissioner found evidence of domestic abuse in 87% of the case files it reviewed and unsupervised overnight contact ordered in nearly half of them (Domestic Abuse Commissioner, 2025). The UN Special Rapporteur on violence against women described a pattern, across regions, of courts dismissing mothers′ credible allegations of abuse and judging them as attempts to manipulate the children (Alsalem, 2023). In its first report on Germany, the Council of Europe′s monitoring body found that harmful gender stereotypes and victim blaming appear to persist in the German judiciary, and noted cases in which custody and contact were granted to abusive fathers without adequate regard for the safety of women (GREVIO, 2022).

This article speaks of mothers deliberately. Protective parents in these cases are predominantly mothers; alienation claims, although raised against both parents, are predominantly raised against mothers (Alsalem, 2023); and the professional beliefs that predict unsafe recommendations are beliefs about mothers in particular (Saunders et al., 2013, 2016). A gender-neutral framing would obscure the mechanism. The decision-theoretic argument below applies equally to a protective father.

The argument proceeds in five steps. The next section separates unsubstantiated reports from false ones and compares professional beliefs with the evidence. The third reviews what is known about judging credibility from demeanor. The fourth analyzes the alienation inference as confirmatory hypothesis testing. The fifth sets out a taxonomy of the resulting errors, and the sixth treats the court′s choice as a decision under uncertainty. The remaining sections explain why the errors persist unmeasured, survey legal responses, and propose safeguards.

Base Rates and a Persistent Conflation

Unsubstantiated Is Not False

A report can fail to be substantiated for many reasons: abuse that leaves no physical trace, a child too young or too frightened to disclose, an investigation that was brief or never opened, or evidence that existed but was not collected. None of these makes the report false. Treating the absence of substantiation as proof of fabrication is the inferential error that Altman and Bland (1995) warned against in a different context: absence of evidence is not evidence of absence.

The best-known national data make the distinction explicit. The 1998 Canadian Incidence Study tracked 7,672 child-maltreatment investigations and coded intentional fabrication separately from reports that were unsubstantiated but made in good faith (Trocmé & Bala, 2005). Intentionally false reports were 4% of all investigations and 12% of the 903 investigations that arose in a custody or access dispute. Among the intentionally false reports made in custody disputes, 43% came from noncustodial parents, whom the authors describe as largely fathers, and 14% from custodial parents, largely mothers; children accounted for 2% (Trocmé & Bala, 2005, Table 6). Fabrication is more common in custody disputes than elsewhere, but it remains a small minority of reports, and it is not concentrated among the mothers to whom the alienation inference is usually applied.

What Professionals Believe

Professional beliefs do not track these data. In a survey of 465 custody evaluators, the belief that mothers make false allegations was associated with recommending that perpetrators receive custody or unsupervised visits, and belief variables explained more of the variation in recommendations than demographics or knowledge of domestic violence did (Saunders et al., 2013). In the same research program, sexist beliefs were linked to the belief that battered women make false allegations and alienate their children. In a later comparison of 1,187 professionals, judges, private attorneys and evaluators were more likely than domestic-violence workers and legal-aid attorneys to believe that mothers make false allegations and alienate their children (Saunders et al., 2016).

What the Outcome Studies Can and Cannot Show

The empirical record on outcomes is contested. Harman and Lorandos (2021) coded 967 appellate decisions and reported that parents found to have alienated a child lost custody or parenting time regardless of gender, and that courts generally weighed abuse allegations carefully. Meier et al. (2022) replied that the study has serious flaws in design, dataset construction, coding and analysis. For the present argument, the most important point is one both sides can accept: neither study can determine how often abuse allegations in family court are true, false or knowingly fabricated, or how often alienation claims are used to set aside credible risk (Meier et al., 2022). Case series of decisions later reversed show the mechanism at work but not its prevalence. In one series of 27 U.S. cases, courts initially treated mothers′ motives with suspicion, 59% of alleged perpetrators received sole custody, and 88% of the children later reported new abuse (Silberg & Dallam, 2019).

That uncertainty is the starting point of this article. If the evidence cannot settle how often reports are true, the court′s decision must be made without knowing, and the question becomes which action is defensible under that uncertainty.

Credibility by Demeanor

Evaluators and judges routinely form impressions of a parent′s credibility from how she presents: calm or agitated, consistent or emotional, cooperative or insistent. The research on deception detection gives little support to this practice. Across more than 200 studies, people distinguished lies from truths with a mean accuracy of about 54%, barely above chance (Bond & DePaulo, 2006), and confidence was a poor guide to accuracy (DePaulo et al., 1997).

Professionals whose work involves judging deception did not perform much better than laypeople (Aamodt & Custer, 2006). Even lie detection that records physiological responses under standardized conditions rests on a weak evidence base: a National Research Council review of polygraph testing found only limited correspondence between deception and the responses the instrument measures, and none of the alternative techniques it examined had been shown to outperform it (National Research Council, 2003). The behavioral cues people rely on are only weakly related to deception (Hartwig & Bond, 2011; Vrij et al., 2010).

A second literature explains what demeanor judgments track instead. In the emotional victim effect, complainants who display the distress observers expect are rated more credible than complainants who are composed, independent of what they say. In an experiment with a filmed rape complainant, credibility depended strongly on the emotion displayed and not on the strength of the account (Kaufmann et al., 2003). The effect is mediated by violated expectations about how a victim should behave (Ask & Landström, 2010), and a meta-analysis of the experimental literature found a robust small-to-moderate effect of distress on rated credibility (Nitschke et al., 2019).

Custody proceedings add a second branch to this bind. A composed mother may be disbelieved because she does not look like a victim; a distressed mother may be judged unstable, anxious or overprotective, and therefore a risk to the child or an alienating influence. The artist and engineer Natalie Jeremijenko described this double bind from her own custody litigation: when she showed emotion she was called hysterical, and when she did not she was seen as cold and uncaring (Berger, 2006). The first branch is well documented experimentally; the second, in which distress counts against a parent′s fitness, is less studied and is an open research question. Under either branch, the judgment carries little information about whether the abuse occurred. A cue with accuracy near 54% corresponds to a likelihood ratio of about $0.54/0.46 \approx 1.2$, so it should move the odds that a report is true only slightly. Treating it as strong evidence is an error of weighting, whichever direction it pushes.

Alienation as Confirmatory Hypothesis Testing

Confirmation bias is the tendency to seek, interpret and remember evidence in ways that support a hypothesis already held (Nickerson, 1998). A related pattern, the positive-test strategy, is the habit of testing a hypothesis by looking for cases in which it would be true rather than cases in which it would fail (Klayman & Ha, 1987). In forensic work, early information shapes how later information is read, and errors propagate across stages and sources (Dror et al., 2017; Kassin et al., 2013).

The alienation inference, as it is commonly applied, has a structure that makes these biases decisive. Under the hypothesis that a mother is alienating the child, almost every observable behavior is predicted. If she reports abuse, the report is the alienation. If she worries, the worry is the alienation. If she complies with contact orders, she is doing so strategically; if she objects, she is obstructing. If the child resists contact, the resistance was induced. A hypothesis that predicts every observation cannot be disconfirmed by any of them, and its apparent support is an artifact of its flexibility.

The consequence is a reversal of evidential direction. Under the hypothesis that abuse occurred, a report by the protective parent is expected, so the report is evidence, of some strength, for that hypothesis. Under the alienation reading, the same report is counted as evidence against the person who made it. A sound inference would ask how much more likely the report is under one hypothesis than under the other; the alienation reading skips that comparison and assigns the report entirely to one side.

This is the mechanism that connects the error taxonomy below to the outcome pattern described above. It does not require bad faith. It requires only that one hypothesis be adopted early and that observations be checked for consistency with it rather than for their power to discriminate between alternatives.

A Taxonomy of Errors

Table 1 groups the errors by where they act on the inference: on the weight given to evidence, on the structure of the evidence, on how hypotheses are managed, and on the decision rule. Each has an anchor in an existing literature.

Table 1. Errors in Custody Evaluation, by Where They Act on the Inference

Error	**What it looks like**	**Anchor**
Evidence weighting		
Demeanor as credibility evidence	A calm parent is rated credible and a distressed parent unstable, or the reverse	Bond & DePaulo (2006); Nitschke et al. (2019)
Absence of evidence read as absence	A closed or unsubstantiated investigation is treated as a finding that nothing happened	Altman & Bland (1995); Trocmé & Bala (2005)
Asymmetric scrutiny	One parent′s statements are reported as fact; the other′s are marked contested	Arbeitsgruppe Familienrechtliche Gutachten (2025); Emery et al. (2005)
Selective use of documents	A summary of a parent′s statements is adopted without consulting the originals	Arbeitsgruppe Familienrechtliche Gutachten (2025)
Evidence structure		
Pseudo-independent corroboration	One account passes through several agencies and is then counted as several sources	Dror et al. (2017)
Unequal informant incentives	Informants with a stake in the outcome are treated as neutral	Neuschatz et al. (2008), by analogy
Flooding	Many quick claims are made; whatever goes unrefuted is treated as established	Lewandowsky et al. (2012)
Hypothesis management		
No alternative hypotheses	One account is adopted as the working hypothesis and nothing is tested against it	Nickerson (1998); BGH (1999)
Sequential contamination	Material entered first shapes how later material is read	Kassin et al. (2013)
Claims never put to the	Serious allegations enter the	Right to be heard

other parent	assessment without the other parent being asked to respond	
Decision rule		
Ignoring unequal error costs	No account is taken of the different harms of each kind of mistake	National Research Council (2003)
Gendered standards	A mother′s worry is pathologized; a father′s is understandable	Saunders et al. (2013, 2016)

Two of these deserve a numerical note. Demeanor carries a likelihood ratio near 1, as shown above. Pseudo-independent corroboration works in the opposite direction: if one account with a likelihood ratio of 2 is relayed through three agencies and each relay is counted as independent, the evidence is credited with a likelihood ratio of $2 \times 2 \times 2 = 8$ instead of 2. The first error discards information that might favor the reporting parent; the second inflates information that may originate with the other.

The Decision Under Uncertainty

More Than Two Hypotheses, More Than Two Actions

Courts and evaluators often frame these cases as a binary choice: either the mother is telling the truth, or she is alienating the child. Neither the risks nor the available actions are binary. Harm to a child can arise through several pathways at once: direct abuse of the child, exposure to violence against the mother, contact with people in the accused parent′s environment, and dangers that remain unidentified. Much of this risk may stay unresolved however carefully the case is investigated. The court, for its part, has at least three actions available: S, the child remains with the primary caregiver and has supervised contact with the accused parent; U, an unsupervised or shared arrangement; and T, the child′s residence is transferred to the accused parent.

Expected Harm

Let p_k be the probability that harm pathway k is present and h_k its severity, and let $e_k(a)$, between 0 and 1, be the degree to which action a exposes the child to that pathway. In addition, transfer separates the child from the primary caregiver, with harm σ, and supervision imposes a burden b on the contact relationship. The expected harm of action a is

$$E[H \mid a] = \Sigma_{k}\, p_k\, e_k(a)\, h_k + \sigma \cdot 1[a = T] + b \cdot 1[a = S].$$

The separation harm is not speculative. Removal decisions tend to weigh a child′s physical safety while underweighting the risk the child bears from separation from the caregiver itself and its long-term effects (Goldsmith et al., 2004). In custody cases it has a further property: it is incurred at once, and a later reversal on appeal does not undo it. Children in the reversed cases studied by Silberg and Dallam (2019) had already lived through the placement before it was corrected.

Dominance

For every pathway that runs through the accused parent or his environment, supervision exposes the child less than transfer does: $e_k(S) \le e_k(T)$. If, in addition, the harm of separating a

child from the primary caregiver exceeds the burden of supervision ($\sigma > b$), then $E[H \mid S] < E[H \mid T]$ for every value of the probabilities p_k. Transfer is dominated: it is worse than supervised contact whatever the court believes about the likelihood of abuse. No estimate of how often mothers′ reports are true is needed to reject it, which matters because, as shown above, no such estimate is available.

Unsupervised contact is different. It is the best action when the abuse pathways are very unlikely and a poor one when they are not: it avoids the supervision burden but leaves the child exposed. With a single aggregated father-side pathway, supervised contact is preferred to unsupervised contact whenever

$$p > b / \{h\,[e(U) - e(S)]\}.$$

Because the severity h of sexual or physical abuse is large relative to the burden of supervision, small probabilities suffice to favor supervision while the uncertainty persists. This mirrors the standard German courts apply to child-protection measures: the more serious the threatened harm, the lower the probability required, provided the risk rests on concrete grounds and not an abstract possibility (BGH, 2016).

The One Hypothesis That Could Justify Transfer

The dominance result has one exception. If the mother herself endangers the child, there is a pathway m against which supervising the father′s contact does nothing and transfer reduces exposure: $e_m(S) > e_m(T)$. Transfer is then preferred only if

$$p_m\, h_m\, [e_m(S) - e_m(T)] > (\sigma - b) + p\, h\, [e(T) - e(S)].$$

The case for transfer therefore rests on p_m, the probability that the mother endangers the child, and that probability must be high enough to outweigh both the separation harm and the added exposure to every risk running through the father. The evidence typically offered for it does not bear on p_m in the required way. The abuse report is not evidence that the reporter endangers the child; under the abuse hypothesis it is the expected act of a protective parent. Demeanor carries a likelihood ratio near 1. What the alienation inference presents as evidence about the mother is, for the most part, the report itself, counted a second time.

Legal standards point the same way. In German law, a transfer requested by the other parent is decided on the child′s best interests (§ 1671 BGB, the Civil Code provision on transfer of custody after separation), whereas removal of custody because of danger to the child (§ 1666 BGB) requires a high probability of harm, which the Federal Court of Justice has described as near-certainty (“ziemliche Sicherheit”) for even partial withdrawal of custody (BGH, 2016). When a transfer is justified by claimed danger from the mother, it is substantively a danger finding and should meet the danger standard. A 2026 ministerial draft reforming German child law would further provide that the presumption favoring contact with both parents does not apply where there has been domestic violence (Bundesministerium der Justiz und für Verbraucherschutz, 2026).

Sensitivity

The dominance of S over T requires only two conditions: that supervision reduce exposure to risks running through the accused parent, and that separation harm exceed supervision burden. The other two comparisons depend on magnitudes. To show how much, we express all harms in units of the separation harm ($\sigma = 1$) and vary the remaining parameters over illustrative ranges. These values are not estimates; they are chosen to span assumptions from mild to severe.

Table 2 gives the probability of father-side abuse above which supervised contact is preferred to unsupervised contact, for a supervision burden between 2% and 20% of the

separation harm and an abuse severity between 3 and 20 times the separation harm. Under central assumptions ($b = 0.1$, $h = 10$, $e(U) - e(S) = 0.3$) the threshold is about 3%. Across the full grid, which also varies the exposure gap from 0.1 to 0.5, it ranges from 0.2% to 67%; it is high only when abuse is assumed to be mild, supervision burdensome, and unsupervised contact barely more exposing than supervised contact.

Table 2. Probability of Father-Side Abuse Above Which Supervised Contact Is Preferred to Unsupervised Contact

Supervision burden *b*	*h* = 3	*h* = 10	*h* = 20
0.02	.022	.007	.003
0.10	.111	.033	.017
0.20	.222	.067	.033

Note. Harms in units of the separation harm. Exposure gap $e(U) - e(S) = 0.3$.

Table 3 gives the probability of a mother-side danger that transfer requires before it is preferred to supervised contact. It shows two things. First, transfer can be justified: when father-side risk is low and the danger attributed to the mother is severe, a modest probability suffices. Second, the requirement rises steeply with father-side risk; in several cells it exceeds 1, meaning that no probability of mother-side danger could justify transfer under those assumptions. In every cell the requirement falls on p_m, which is the quantity the alienation inference does not measure.

Table 3. Probability of Mother-Side Danger Required for Transfer to Be Preferred to Supervised Contact

Father-side probability *p*	Father-side severity *h*	$h_m = 3$	$h_m = 10$	$h_m = 20$
0.05	3	.38	.11	.06
0.05	10	.48	.14	.07
0.05	20	.63	.19	.09
0.20	3	.51	.15	.08
0.20	10	.93	.28	.14
0.20	20	> 1	.46	.23
0.50	3	.78	.23	.12
0.50	10	> 1	.54	.27
0.50	20	> 1	.99	.49

Note. Harms in units of the separation harm; $b = 0.1$, $e(T) - e(S) = 0.8$, $e_m(S) - e_m(T) = 0.9$. Entries above 1 mean transfer cannot be preferred for any probability of mother-side danger.

The model treats pathways as additive and severities as fixed. Relaxing either assumption is unlikely to favor transfer: risks that compound one another would add to the exposure cost of transfer, and aversion to severe outcomes would weigh the abuse pathways more heavily.

Why the Error Stays Invisible

Errors in criminal convictions became visible when DNA evidence provided ground truth in individual cases. Custody decisions have no equivalent. There is rarely a later, independent determination of whether the abuse occurred, and outcomes for the children are not tracked. A system that never learns whether its decisions were right cannot correct its error rate.

Several features compound this. Family proceedings are closed to the public in Germany (§ 170 GVG, the Courts Constitution Act provision on non-public family hearings) and in many other jurisdictions, which protects children′s privacy but also prevents the case-based scrutiny that drives reform elsewhere. A mother who speaks publicly about her case risks being judged as a parent for having done so, so the people with the most direct knowledge have the strongest reasons to stay silent. Third parties who could corroborate a mother′s account often decline to become involved in a contested family case. And the stakes are widely misjudged as lower than in criminal law, although for a child, remaining with the primary caregiver and being protected from abuse are among the most consequential outcomes there are.

The same features limit research. Published and appellate decisions are a selected sample, so studies built on them describe what courts write, not how often allegations are true or how often children are placed with abusers. This is why the contested outcome studies cannot settle the central question, and why the present article argues from the structure of the decision rather than from prevalence.

Comparative Legal Responses

Several jurisdictions have changed the rules that govern these decisions. Spain′s 2021 child-protection law directs public authorities to prevent unscientific theories that presume adult manipulation, naming parental alienation syndrome, from being taken into consideration (Ley Orgánica 8/2021, Art. 11.3); a reform approved by the Spanish Council of Ministers at first reading in May 2026 would prohibit the concept and its reformulations expressly and make reports based on it unusable in proceedings. Italy′s Court of Cassation held in 2022 that reliance on parental alienation syndrome is not legitimate and described it as a pseudoscientific foundation for measures that severely affect children′s lives (Corte di Cassazione, 2022). England and Wales responded to the Harm Panel with a program of reforms to private family law (Hunter et al., 2020). Germany′s 2026 draft would define domestic violence in line with the Istanbul Convention and remove the contact presumption in domestic-violence cases. In decision-theoretic terms, the Spanish and Italian measures remove an inference that absorbs every observation, and the English and German measures move the decision rule toward precaution where violence is present.

Safeguards

The analysis suggests procedural safeguards that do not require courts to resolve questions they cannot resolve:

1. Every report distinguishes unsubstantiated allegations from allegations found to be false, and does not treat the first as the second.

2. Every evaluation records the alternative hypotheses considered and what evidence would discriminate between them.
3. Every material claim is put to the other parent before it is weighed.
4. Evaluations include a source map showing where each claim originated, so that relayed accounts are not counted as independent.
5. Credibility findings are not based on demeanor.
6. Recommendations state the harms of each kind of error and how they were weighed.
7. While risk to the child remains unresolved, supervised contact with the accused parent is the default, and a transfer away from the primary caregiver requires independent evidence that the primary caregiver endangers the child.

Limits and Research Agenda

The outcome data are contested, and the case series that best illustrate the mechanism are selected samples. The model treats severities and exposures as known up to plausible ranges; in practice they are estimated with error. The argument concerns cases in which a mother reports abuse; it does not address cases in which the evidence that a mother endangers the child is independent and strong, where Table 3 shows that transfer can be warranted. Three lines of research would reduce the uncertainty: experiments testing whether distress counts against mothers′ perceived fitness in custody vignettes, the second branch of the double bind; audits of evaluation reports against the safeguards above; and minimal outcome tracking, so that family courts can learn how often their decisions protect children and how often they do not. A planned scoping review will document what data exist across jurisdictions and what is missing.

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